

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

JARRIUS VEREEN,

Plaintiff,

-against-

JASON GARCIA, JUAN ACOSTAVILLA, MD
AHAD, CHRISTOPHER ARNAUD, OBRIAN
BARNETT, IBN BARTHELEMY, JHONN
GUTIERREZ, NAZIM KARIM, KEITH
KELLY, RICHARD KISSANE, JEREMY
LORENZORIVERA, ERCILIO LUNA,
VICTOR NINA, LUIS RIVERA, KIMBERLY
ROSE, CHRISTIAN VALENCIA, FILIPE
VIEIRA, AND BRYAN WILDER,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates Bronx County
as place of venue**SUMMONS**The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 21, 2024
New York, New York

Elefterakis, Elefterakis & Panek

By: Michael Gluck, Esq.
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116*Attorneys for Plaintiff*

Failure to respond will result in a judgment against you by default and interest from March 21, 2021

**SUPREME COURT OF THE STATE OF NEW YORK
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JARRIUS VEREEN,

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-against-

JASON GARCIA, JUAN ACOSTAVILLA, MD
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VERIFIED COMPLAINT

Plaintiff JARRIUS VEREEN, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK,
complaining of the defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. Jurisdiction is conferred by 42 U.S.C. § 1983.
3. That the action has been commenced within three years of the accrual of the cause of
action.

PARTIES

4. Plaintiff JARRIUS VEREEN is a resident of the State of New York.
5. Defendant Police Officer Jason Garcia, Shield No. 18851 ("Garcia"), at all times relevant
herein, was an officer, employee and agent of the NYPD. Defendant Garcia is sued in his individual

and official capacities.

6. Defendant Police Officer Juan Acostavilla, Shield No. 30227 (“Acostavilla”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Acostavilla is sued in his individual and official capacities.

7. Defendant Police Officer MD Ahad, Shield No. 1209 (“Ahad”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Ahad is sued in his individual and official capacities.

8. Defendant Police Officer Christopher Arnaud, Shield No. 18104 (“Arnaud”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Arnaud is sued in his individual and official capacities.

9. Defendant Police Officer Obrian Barnett, Shield No. 18959 (“Barnett”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Barnett is sued in his individual and official capacities.

10. Defendant Police Officer Ibn Barthelemy, Shield No. 21937 (“Barthelemy”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Barthelemy is sued in his individual and official capacities.

11. Defendant Police Officer John M. Gutierrez, Shield No. 6165 (“Gutierrez”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Gutierrez is sued in his individual and official capacities.

12. Defendant Police Officer Nazim Karim, Shield No. 28632 (“Karim”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Karim is sued in his individual and official capacities.

13. Defendant Police Officer Keith Kelly, Shield No. 17825 (“Kelly”), at all times

relevant herein, was an officer, employee and agent of the NYPD. Defendant Kelly is sued in his individual and official capacities.

14. Defendant Police Officer Richard Kissane, Shield No. 30366 (“Kissane”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Kissane is sued in his individual and official capacities.

15. Defendant Police Officer Jeremy Lorenzorivera, Shield No. 13443 (“Lorenzorivera”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Lorenzorivera is sued in his individual and official capacities.

16. Defendant Police Officer Ercilio Luna, Shield No. 6041 (“Luna”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Luna is sued in his individual and official capacities.

17. Defendant Police Officer Victor Nina, Shield No. 31885 (“Nina”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Nina is sued in his individual and official capacities.

18. Defendant Police Officer Luis Rivera, Shield No. 8037 (“Rivera”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Rivera is sued in his individual and official capacities.

19. Defendant Police Officer Kimberly Rose, Shield No. 20482 (“Rose”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Rose is sued in his individual and official capacities.

20. Defendant Police Officer Christian Valencia, Shield No. 16922 (“Valencia”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Valencia is sued in his individual and official capacities.

21. Defendant Police Officer Filipe Vieira, Shield No. 20255 (“Vieira”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Vieira is sued in his individual and official capacities.

22. Defendant Police Officer Bryan Wilder, Shield No. 1254 (“Wilder”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Wilder is sued in his individual and official capacities.

23. At all times here mentioned, the individual defendants were acting under color of state law.

STATEMENT OF FACTS

24. On or about March 21, 2021, at approximately 7:30 p.m., plaintiff was lawfully present in the vicinity of 599 East Tremont Avenue in the Bronx, New York.

25. The defendants, uniformed employees of the NYPD acting in the scope of their employment, approached plaintiff without probable cause or reasonable suspicion, handcuffed him, pulled his pants down and threw him to ground face first, causing his face to hit the pavement and causing severe injuries including a fractured jaw requiring surgery.

26. The defendant that threw plaintiff to the ground was either Garcia, Acostavilla, Ahad, Arnaud, Barnett, Barthelemy, Gutierrez, Karim, Kelly, Kissane, Lorenzorivera, Luna, Nina, Rivera, Rose, Velencia, Vieira, and/or Wilder.

27. Plaintiff was not cited for any violation of law or taken into police custody; instead, he was transported by ambulance to St. Barnabas Hospital, where surgery was performed.

28. As a result of defendants’ conduct, Mr. Vereen suffered emotional distress, mental anguish, fear, pain, permanent bodily injury, anxiety, embarrassment, and humiliation.

FIRST CLAIM**§ 1983 Unlawful Stop, Search and False Imprisonment**

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. The individual defendants violated the Fourth Amendment when they stopped plaintiff, handcuffed him and pulled his pants down without reasonable suspicion or probable cause.

31. As a result of the foregoing, the plaintiff, JARRIUS VEREEN, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

SECOND CLAIM**§ 1983 Excessive Force**

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. The individual defendants violated the Fourth and Fourteenth Amendments when they used unreasonable force against plaintiff.

34. That as a result of the foregoing, the plaintiff, JARRIUS VEREEN, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

THIRD CLAIM**§ 1983 Failure to Intervene**

35. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

36. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

37. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

38. As a direct and proximate result of this unlawful conduct, plaintiff sustained the

damages hereinbefore alleged.

FOURTH CLAIM
Punitive Damages & Attorney's Fees

39. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

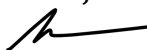
40. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

41. Accordingly, plaintiff is entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff, JARRIUS VEREEN, demands that judgment, compensatory, exemplary, and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: March 21, 2024
New York, New York

Yours, etc.,
ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: 

Michael Gluck, Esq.

80 Pine Street, 38th Floor New
York, New York 10005 (P)(212)
532-1116
(F)(212) 532-1176

Attorneys for plaintiff

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
):SS
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and an associate of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the plaintiff herein, affirms:

That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: New York, New York
March 21, 2024



Michael Gluck, Esq.